



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-23-00074 | 2236 Pershing Zoning Map Amendment
Date: May 8, 2023

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/8/2023
- Public Services Committee 5/16/2023
- Second reading 5/22/2023
- Public Services Committee 6/6/2023
- Third and final reading 6/12/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their May 1, 2023 meeting and recommended the Governing Body approve this application by a vote of 5-1.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM MR MEDIUM-DENSITY RESIDENTIAL TO MUB MIXED-USE BUSINESS EMPHASIS FOR LAND LOCATED AT LOT 29, BLOCK 1, EASTRIDGE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on May 1, 2023, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 29, Block 1, Eastridge, Cheyenne, Wyoming, is hereby changed to MUB Mixed-use Business Emphasis.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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CITY OF CHEYENNE PLANNING COMMISSION

MAY 1, 2023

STAFF REPORT

FILE: UDC-23-00079: 2236 Pershing Blvd Frontier Access – Zoning Map Amendment

REQUEST: A request to rezone approximately 0.2 acres of land from MR Medium-density Residential to MUB Mixed-use Business Emphasis

LOCATION: North of Pershing Blvd., west of Converse Avenue

APPLICANT: Michelle McMahon

AGENT: Shane Hansen – Steil Surveying Services

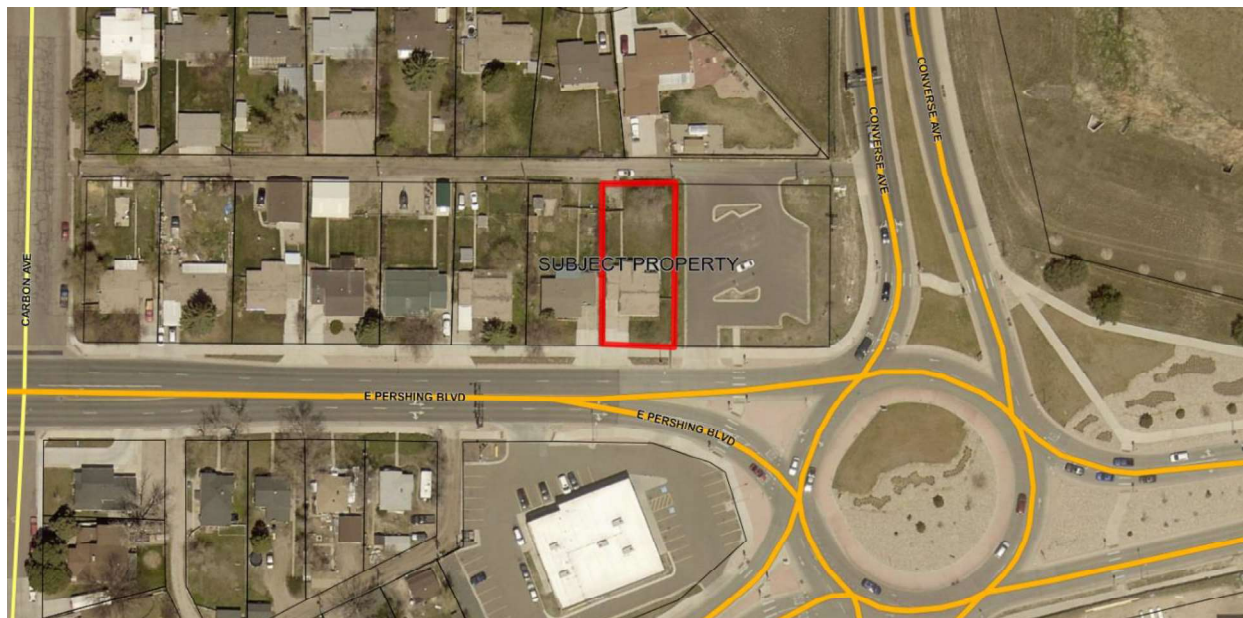
OWNER: Westland Holdings Inc

ZONING: MR Medium-density Residential

FUTURE LAND USE: Urban Residential

PURPOSE: To allow the development of commercial use

PREPARED BY: Seth Lloyd, Senior Planner



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lot 29, Block 1, Eastridge to MUB Mixed-use Business Emphasis as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from MR Medium-density Residential to MUB Mixed-use Business Emphasis for 0.2 acres of land.

The proposed MUB zoning is intended to allow a variety of commercial and residential uses in an pedestrian-centric format.

The land is currently occupied by a single-family home. The conversion of the single-family home into any one of a number of commercial uses requires zone change. The proposed MUB zone would allow a variety of commercial uses, but also allow the home to be re-converted into a residence should the desire arise.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Urban Residential	MR Medium-density Residential	Single-family residential
North	Urban Residential	MR	Single-family residential
South	Mixed-use Commercial	MUB Mixed-use Business Emphasis	Service, Retail
East	Urban Residential	MUB	Parking lot
West	Urban Residential	MR	Single-family residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure.

The location associated with three major streets (Converse, Pershing, and 19th) would encourage the development of commercial uses in this area. PlanCheyenne encourages the flexibility to be responsive to market demands. PlanCheyenne also encourages the conversion of homes along arterials to more commercial-style uses.

The Future Land Use Designation for this property and the surrounding area north of Pershing is Urban Residential. According to comprehensive plan the optimal City zone for the subject property's future land use designation is any one of the residential zoning districts. However, the future land use map shouldn't be construed as having 'bright lines' when it comes to future land use designations, and the property is close to a mixed-use commercial designation at a major intersection. The expansion of mixed-use commercial type uses to this property is in concordance with the general guide of the future land use map.

The policies of PlanCheyenne are supportive of this proposed zone change. The future land use plan encourages commercial-style zoning at this general location.

The proposed zone change largely **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

Surrounding property are zoned with the MUB and MR zones. MUB is the current zoning of the parcels immediately to the south and east. The proposed zoning is also compatible with the nearby future land use designation of Mixed-use Commercial and PlanCheyenne's encouragement of converting homes along major roadways to commercial uses.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The current MR zone encourages a variety of residential uses. The MUB zone allows all residential uses the MR zone does, but also allows a variety of commercial uses. The MUB zone encourages buildings to be built close to the street with limited side parking and primarily rear parking areas. The proximity to Pershing and the roundabout – and the narrow nature of the parcel – means that vehicular access to Pershing would not be allowed. The rear-loaded nature of MUB zoning development is appropriate at this location.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

Block sizes are typically based on the future land use designation, and that is not proposed to be changed with this application. However, the intent statement of the MUB zone generally

requires smaller blocks than the MR zone, but there is limited opportunity to create any meaningful connections to the street network due to the previous development patterns. The MUB zone is generally more restrictive in direct access to streets, which is appropriate at this location due to the proximity to the roundabout.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The MUB zone is intended to develop with a mix of residential, retail, employment, service, and civic uses in activity centers or areas designated Mixed-use Commercial by the comprehensive plan. Land in the area is designated as Mixed-use Commercial by PlanCheyenne.

MUB design standards encourage buildings located near the street with parking behind. Should the property redevelop, the access off of Pershing would be required to be closed with parking on the rear part of the parcel – due to the proximity to the roundabout, the redevelopment of the parcel would likely required the closing of the Pershing access – no matter the zone or the use.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

It is Staff's understanding the specific development proposed in concert with this rezoning is the conversion of the existing house to a commercial use. Should the proposed development not be executed after approval, there are a number of commercial and residential uses which would be eligible to be established at this location. Conversion back into a single-family home would also be possible.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, no review comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The MUB zone is appropriate based on the comprehensive plan and context of the property.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

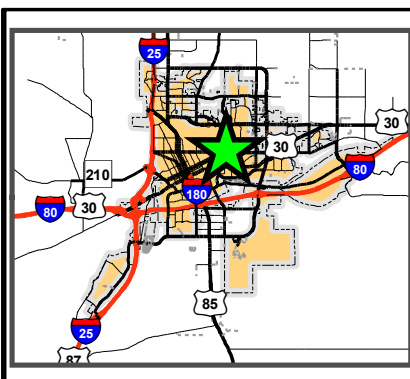
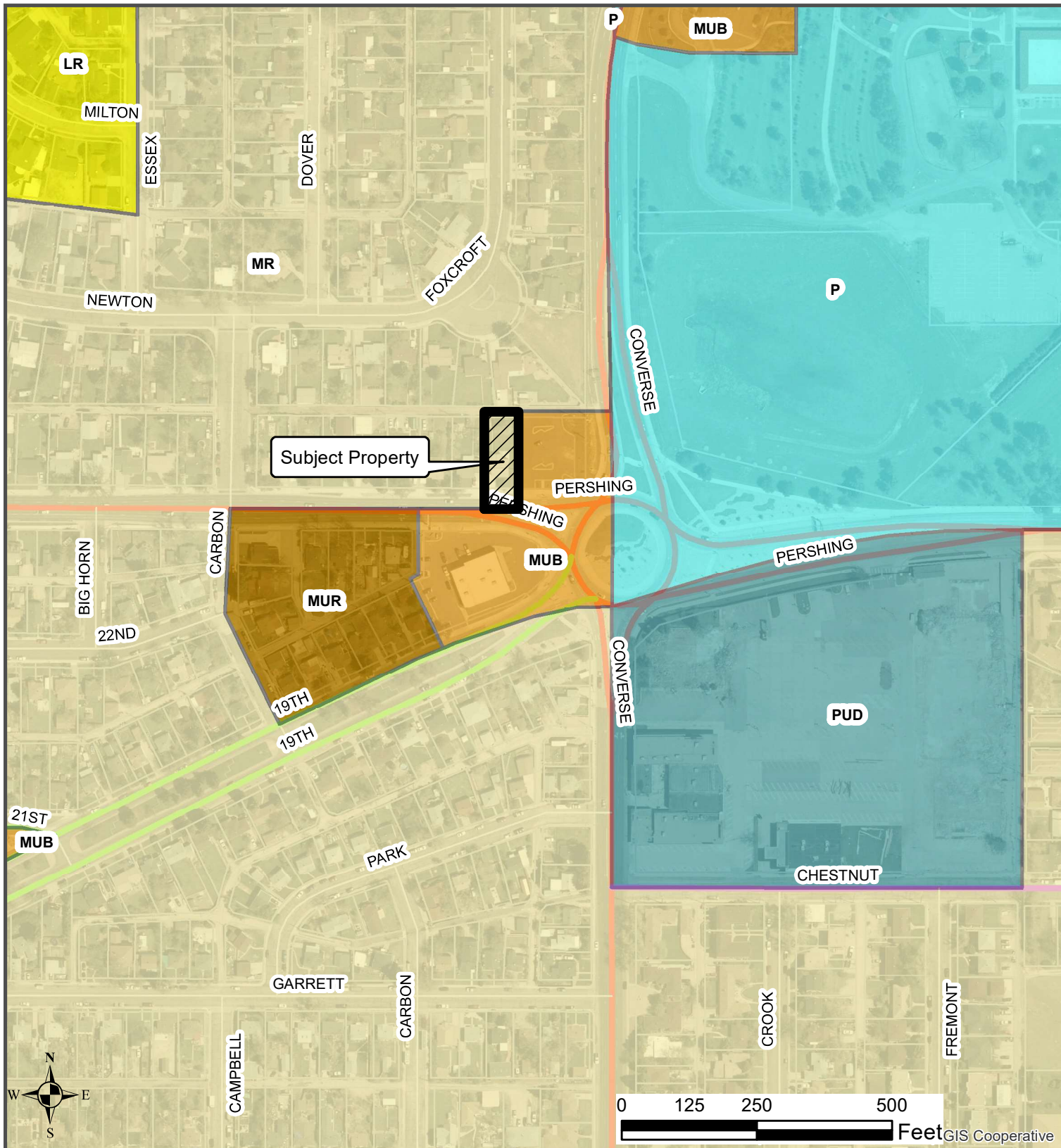
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from MR Medium-density to MUB Mixed-use Business Emphasis.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

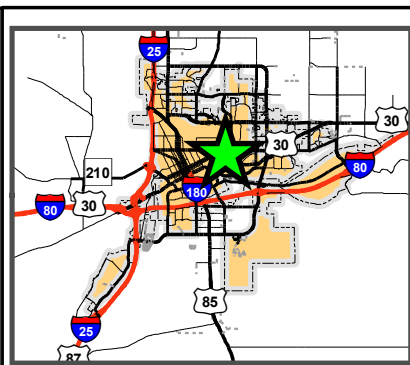
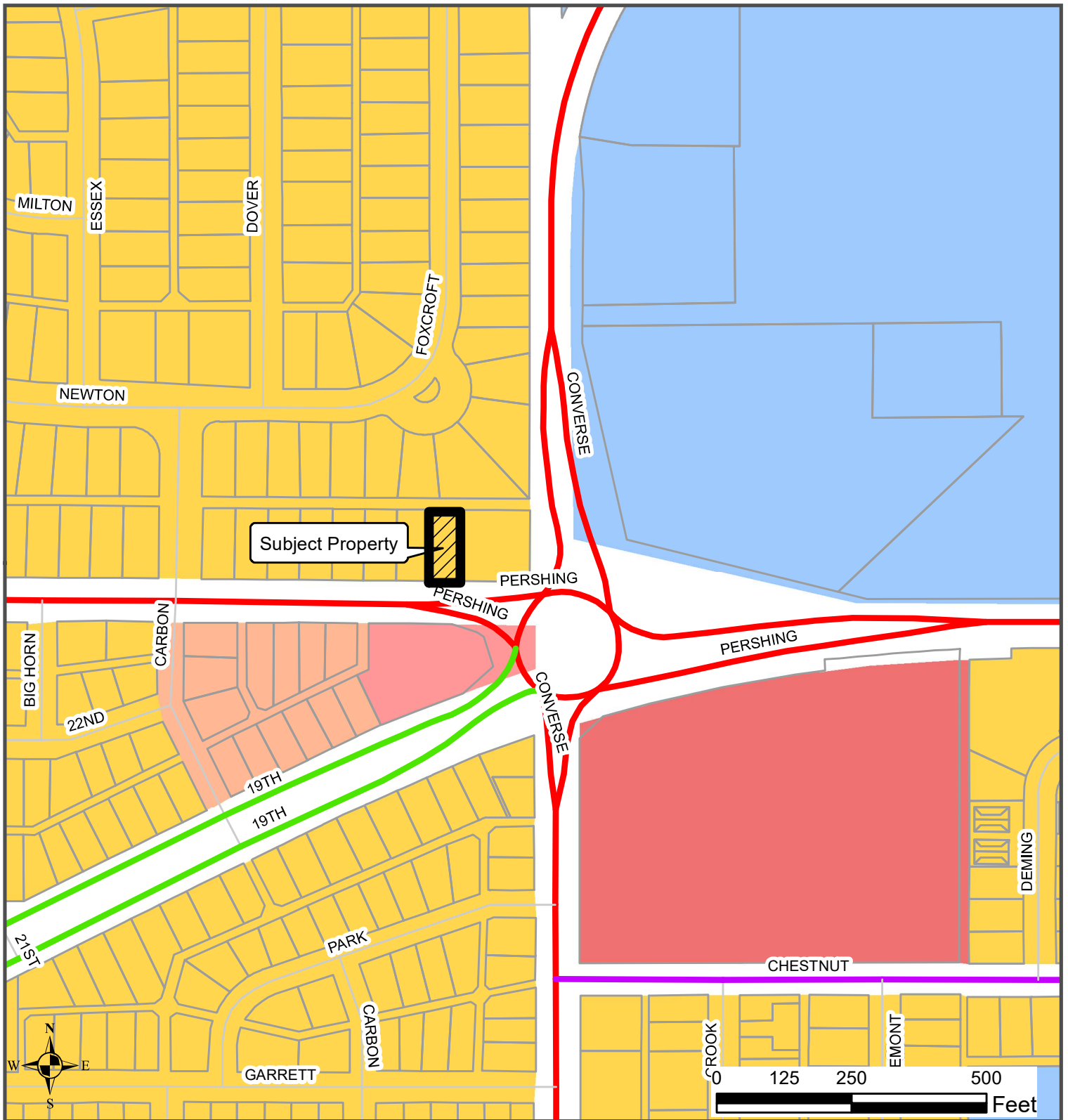


Attachment 1: Zoning Map UDC-23-00074

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map UDC-23-00074

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Zoning Map Amendment Application

Submission date: **6 March 2023, 3:21PM**

Receipt number: **50**

Related form version: **10**

General Information

Applicant Name: **MICHELLE MCMAHON**

Applicant Address: **2236 E PERSHING BLVD**

Applicant City: **CHEYENNE**

Applicant State: **WY**

Applicant Zip Code: **82003**

Applicant Phone: **307.631.5503**

Applicant Email: **michelle@frontieraccess.com**

Representative Name: **Shane HANSEN**

Representative Address: **1102 west 19th**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **3076347273**

Representative Email: **shansen@steilsurvey.com**

Owner Name: **WESTLAND HOLDINGS INC**

Owner Address: **2236 E PERSHING BLVD**

Owner City:	CHEYENNE
Owner State:	WY
Owner Zip Code:	82003
Owner Phone:	307.631.5503
Owner Email:	michelle@frontieraccess.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	Steil__03062023151415.PDF
Project Location (Street Address or General Location):	2236 E PERSHING BLVD
Assessor's Parcel ID number(s)	14662941702800
Total Project Area	0.19 acres
Existing Zoning	MR - Medium-density Residential
Requested Zoning	MUB - Mixed-use Business Emphasis

Application-Specific Questions

Written Statement	zone change from MR to MUB.
Zoning Map	23110 - ZC L29 B1 EASTRIDGE-PAPER.pdf
Notification Letter	neighbor-notification-letter-template (2).pdf
Supporting Documents / Information	300' buffer notification list.docx

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
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The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

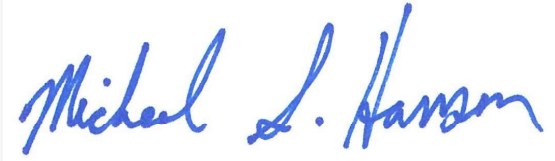
Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

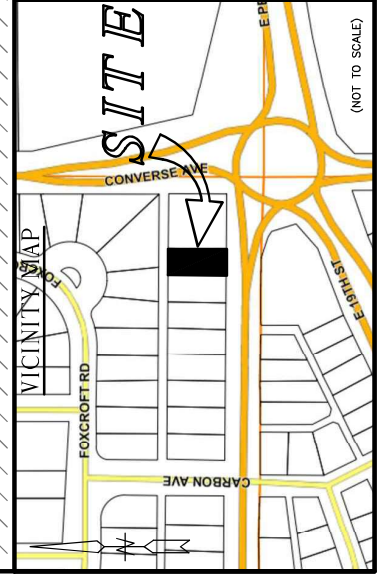
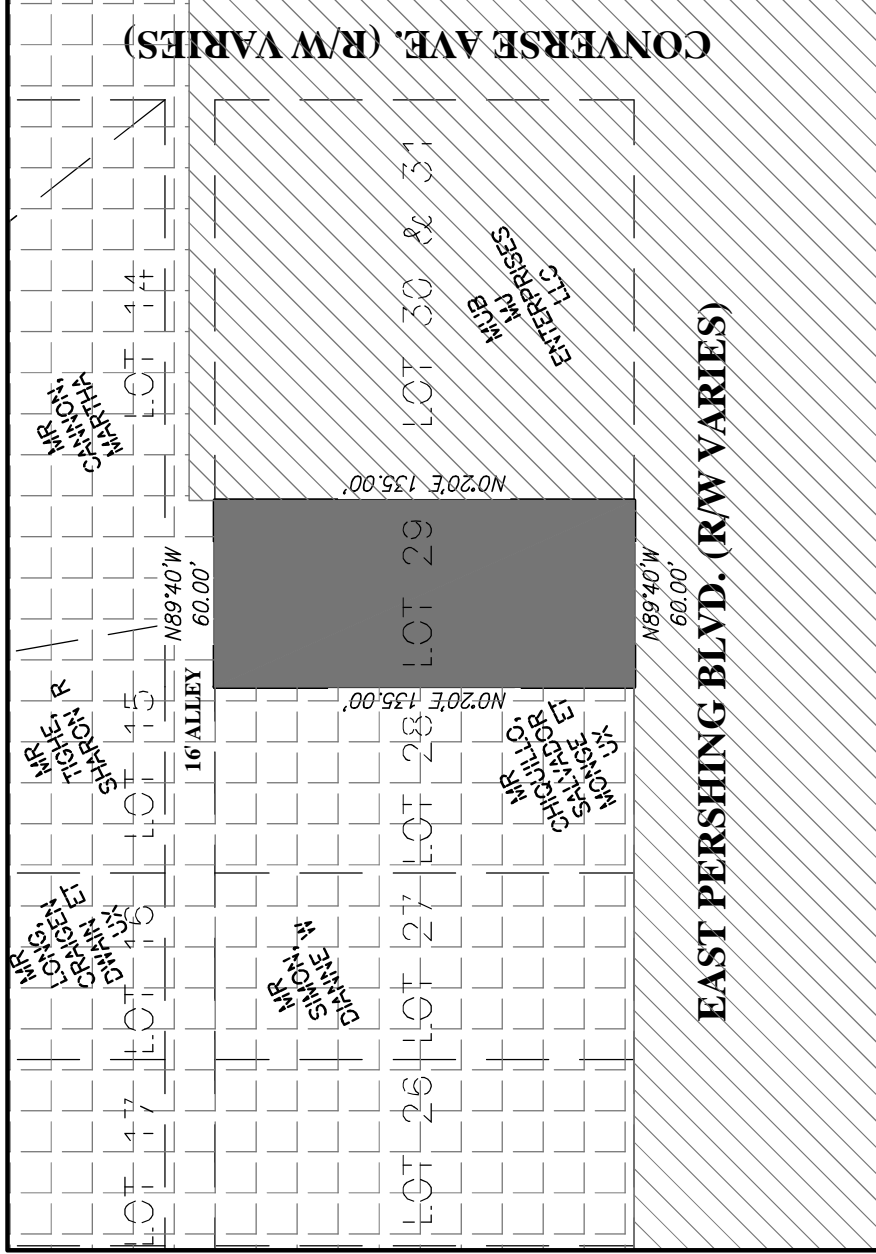
Name of signatory: SHANE HANSEN

A handwritten signature in blue ink that reads "Michael L. Hansen". The signature is written in a cursive style with a large initial 'M' and a distinct 'L'.

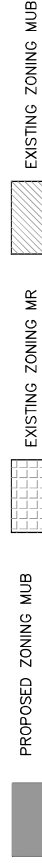
Uploaded signature image: [HANSEN SIGNATURE.jpg](#)

Please enter an email address for an email receipt.

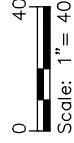
shansen@steilsurvey.com



LEGEND

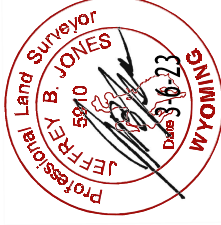


EXISTING ZONING - MR
PROPOSED ZONING - MUB



NOTE
BEARINGS AND DISTANCES ARE
RECORDED FROM THE PLAT OR
LEGAL DESCRIPTION

REVISD: 3/6/2023
23110 - ZC L29 B1 EASTRIDGE.DWG



CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

ZONE CHANGE EXHIBIT

FOR

LOT 29, BLOCK 1,
EASTRIDGE SUBDIVISION,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING
PREPARED MARCH 2023



STEEL SURVEYING SERVICES, LLC
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